CASE BRIEF ON CRIMINAL LIABILITY (FICTIONAL,

The accused was initially charged under Section 302 IPC for the offence of murder, along with Section 34 IPC for acts done in furtherance of common intention. The prosecution also invoked Section 120B IPC alleging criminal conspiracy between the accused persons named in the complaint.

During the trial, the defence relied heavily on the reasoning in Ramesh v State, AIR 1985 SC 40, where the court held that mere presence at the scene does not establish common intention under Section 34 IPC. The defence further cited Sharma v State of Punjab, 1998 4 SCC 200, to argue that circumstantial evidence must form a complete chain before conviction under Section 302 IPC.

The prosecution, in response, referred to State v Kumar, AIR 2003 SC 512, arguing that Article 21 of the Constitution does not shield an accused from conviction where the chain of evidence is complete. Reliance was also placed on Section 106 of the Indian Evidence Act regarding facts especially within the knowledge of the accused.

On the question of procedure, both parties referred extensively to CrPC provisions, particularly Section 161 CrPC concerning statements recorded by police, and Section 313 CrPC concerning the examination of the accused. The defence argued that non compliance with Section 161 CrPC vitiated part of the prosecution case.

The bail application filed earlier had already been rejected with reference to Section 437 CrPC, and the appellate court, citing Verma v State, AIR 2011 SC 88, reaffirmed that economic offences and grave charges under Section 302 IPC generally warrant a stricter approach to bail under Section 439 CrPC.

Ultimately, the court held that the combined effect of Section 302 IPC, Section 34 IPC, and the evidentiary standard under Section 106 of the Evidence Act supported conviction, while noting that Article 21 safeguards had been duly complied with throughout the trial, consistent with the position taken in Kumar v State, AIR 2003 SC 512.